Gmail **Stephen Cooke <stephencooke.c@gmail.com>**

Your Family Law Matter - Draft Letter to Heather Anne Cooke

16 messages

Emily Partridge <e.partridge@claritylawyers.com.au> Tue, Nov 21, 2023 at 5:49 PM
To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Dear Stephen,

Further to our recent discussions with you, please now find ***attached*** a draft letter to Heather for your careful review and additional instructions.

We confirm that legal financing will not be necessary **if** Heather is agreeable to an interim distribution of funds to you.

Please do not hesitate to contact us if you have any questions in relation to the draft letter, or your matter more generally.

Yours faithfully,

Emily Partridge | Solicitor

Office Line: (02) 4023 5553

Direct Line: (02) 4072 2904

Clarity LAWYERS | Focus on Family Law

Level 4, T&G Building, 45 Hunter Street, Newcastle, NSW 2300

Click Here to Book an Appointment

www.claritylawyers.com.au

ABN: 172 4106 2932

Liability limited by a scheme approved under professional standards legislation

If you are not the intended recipient of this email please notify us immediately and delete the original email and any copies. You must not use, reproduce, copy or disclose this information other than for the purposes for which it was supplied. Personal information contained in communications with us is subject to our Privacy Policy available on our website.

We acknowledge that there may be a risk of computer viruses being transmitted via email and we have taken all reasonable steps to avoid this and as such will not accept any liability. The recipient of this email will release us from any liability for damage caused by the email or its attachments from viruses, interference, corruption or unauthorised access.

DRAFT Initial Letter to Heather Anne Cooke.pdf
640K

Stephen Cooke <stephencooke.c@gmail.com> Tue, Nov 21, 2023 at 10:18 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>

Please see edits below:

In such circumstances, our client proposes that you obtain alternative accommodation in the interim.

I don't propose she moves out, she plans on moving out.

If you are agreeable to vacating the Merewether property, our client proposes that the children spend each weekend with you on an interim basis, from the conclusion of school on Friday (or 3:20pm) until the beginning of school on Monday (or 9:00am) [Stephen, could you confirm your instructions in relation to this proposal?]

from the conclusion of school on Friday (or 3:20pm) until Sunday 12:00pm. Additionally, there is a scheduled 2-hour dinner on Wednesday night from 5:00pm to 7:00pm. It's important to note that our client has the first right of refusal (otherwise she plans on utilising Grandma to step into my role as a father).

In the event that no agreement is reached following initial negotiations, we propose that you both attend mediation as a matter of priority.

In the event that no agreement is reached following initial negotiations, we propose that you both attend mediation at a later date.

We are instructed that you have unilaterally removed the following sums of money:

1. $29,750 from account ending #2594 on 17 Nov 2023

2. $173,000 from account ending #5063 on 17 Nov 2023

3. $166,037 from account ending #7778 on 17 Nov 2023

We are instructed that you and our client came to an informal agreement regarding financial support of our client, in circumstances where our client is unemployed and where you are in receipt of a full-time salary. This agreement was that you are to pay our client periodic maintenance of $5,000 per month and that you would be paying for all utilities, mortgages, and associated property expenses for a period of 12 months. This agreement was reached with a

view to our client achieving a level of financial stability post-separation.

This offer was proposed to me, but I am willing to accept these elements during this transitional period. Should specify spousal maintenance.

Lastly, we ask whether you would also be agreeable to an interim distribution of funds to our client by way of partial property settlement in the sum of $25,000? This will assist our client in the payment of his legal fees and will be accounted for in any future property settlement.

Wife has used pre-separation funds and I would like the same opportunity.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Tue, Nov 21, 2023 at 11:22 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>

And we must add money for child support.
[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Wed, Nov 22, 2023 at 1:13 AM
To: Emily Partridge <e.partridge@claritylawyers.com.au>

I'm sorry. Please do this at your discretion. I'm unearved by whats happend. I haven't had time to process what will be required for the children regarding monthly expenses. Just that she already said 5k previously based on having the kids the majority of the time. Perhaps if we can increase later down the road if need be.

Kind regards,

Stephen Cooke
[Quoted text hidden]

Emily Partridge <e.partridge@claritylawyers.com.au> Wed, Nov 22, 2023 at 6:31 PM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Hi Stephen,

Thank you for your feedback regarding the draft letter to Heather. We have made some various changes as ***attached.***

We advise that child support will come into the equation once you are no longer living separated under one roof and begin outworking the parenting arrangements. This will involve you making an application with the child support agency. At that stage, you may wish to utilise the online child support calculator which will assess your respective incomes and percentage of care. Alternatively, we could negotiate a Binding Child Support Agreement but this is normally this is done down the track, together with the property settlement side of your matter. Therefore, as we are at the early stages of your matter and given that the letter covers a lot of ground already, we suggest that the topic of child support be left for the time being.

We trust the above clarifies.

Once you have approved of the final draft letter to Heather, we will be in a position to send it as a matter of priority.

We look forward to hearing from you again soon.

Yours faithfully,

Emily Partridge | Solicitor

Office Line: (02) 4023 5553

Direct Line: (02) 4072 2904

Level 4, T&G Building, 45 Hunter Street, Newcastle, NSW 2300

Click Here to Book an Appointment

www.claritylawyers.com.au

ABN: 172 4106 2932

Liability limited by a scheme approved under professional standards legislation

If you are not the intended recipient of this email please notify us immediately and delete the original email and any copies. You must not use, reproduce, copy or disclose this information other than for the purposes for which it was supplied. Personal information contained in communications with us is subject to our Privacy Policy available on our website.

We acknowledge that there may be a risk of computer viruses being transmitted via email and we have taken all reasonable steps to avoid this and as such will not accept any liability. The recipient of this email will release us from any liability for damage caused by the email or its attachments from viruses, interference, corruption or unauthorised access.

[Quoted text hidden]

DRAFT Initial Letter to Heather Anne Cooke (Revised).pdf
639K

Stephen Cooke <stephencooke.c@gmail.com> Wed, Nov 22, 2023 at 8:42 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Emily, Smantha,

With respect to;
"We are instructed that you and our client came to an informal agreement regarding financial support of our client, in circumstances where our client is unemployed and where you are in receipt of a full-time salary. This agreement was that you are to pay our client periodic spousal maintenance of $5,000 per month and that you would be paying for all utilities, mortgages, and associated property expenses for a period of 12 months. This agreement was reached with a view to our client achieving a level of financial stability post-separation."

I want to communicate that this was a proposal that was forced upon me amongst other things such as her intention to leave with the kids and refinish a new rental with new goods... but I am willing to accept some elements. Below is me taking a crack at conveying my concerns/thoughts. Can you take another crack at this addressing these concerns?

"We are instructed that you and our client came to a discussion regarding financial support, given our client's unemployment and your full-time employment. It's important to clarify that, at this point, there has not been a mutual agreement on the terms proposed by our client. Some elements of the proposal suggested periodic spousal maintenance of $5,000 per month, and coverage of all utilities, mortgages, and associated property expenses for a period of 12 months. Our client is willing to accept these elements as an agreement. This arrangement was reached with a view to our client achieving a level of financial stability post-separation."

Also, I see we're still asking for funds from my future settlement. My wife however has used pre-separation funds. Can we make a request to fund her future settlement for example?

Lastly, regarding my request to include the first right of refusal provision, my wife has explicitly expressed her intention to have custody of the children while designating the grandmother as my children's primary caregiver. I am concerned about this arrangement and would like to ensure that if Heather is unable to care for the children in certain situations, I have the opportunity to step in. For instance, if she cannot pick the kids up from school or has to work on weekends, I would like to be involved in their care during those times.

Thank you,

Stephen Cooke
[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Wed, Nov 22, 2023 at 8:44 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Correction,
"Can we make a request to fund ***with*** her future settlement for example"
[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Wed, Nov 22, 2023 at 11:14 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Just some additional points;
Utilities is: Gas, Electricity, Water

Also, what has not been discussed but implied. My vehicle is registered under my wife's name. The rego for my vehicle is DAI47C. I drive a 2015 Honda CR-V VTI-L

With additional terms going her way we may need to clarify that I can continue to use this vehicle as my own. She drives an Audi.

Kind regards,

Kind Regards,

Stephen

[Quoted text hidden]

Emily Partridge <e.partridge@claritylawyers.com.au> Thu, Nov 23, 2023 at 5:45 PM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Hi Stephen,

We address your questions/comments as follows:

1. We have updated our internal balance sheet to include the motor vehicles as assets in the property pool. Thank you for letting us know;

2. It is likely assumed that you each drive your own respective cars when you are no longer living under the one roof. In our view, it is unnecessary to address that in this initial letter. However, it will come up once we begin discussing the property settlement in due course. We advise that for family law purposes, the fact that an asset is registered in the name of one party as opposed to the other, or jointly, is largely irrelevant aside from when we draft the final orders so while it is relevant and necessary for us to know who the car is registered to, it does not change anything at this time;

3. We have slightly amended the spousal maintenance paragraph which will suffice;

4. Heather's legal fees should not be paid from funds built up during the relationship. However, it is at her discretion as to whether she pays her fees from her income or borrowings. Heather moving assets around in the property pool does not mean that she has "used" pre-separation funds. Those assets are still available for division and if they are disposed of, we can at that stage argue 'wastegate' and 'addbacks;'

5. How Heather spends her time with the children and whether she seeks the support of her mother is a matter for her. We are of the view that you having as little contact as possible with Heather in the interim will likely de-escalate the conflict.

We trust the above assists. Could you let us know if we now have your instructions to send the letter to Heather?

We look forward to hearing from you.

Yours faithfully,

Emily Partridge | Solicitor

Office Line: (02) 4023 5553

Direct Line: (02) 4072 2904



[Quoted text hidden]

DRAFT Initial Letter to Heather Anne Cooke (Further Revised).pdf
639K

Stephen Cooke <stephencooke.c@gmail.com> Thu, Nov 23, 2023 at 6:07 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Thank you for your ongoing patience and kindness. Please send it to the other side.

Kind regards,

Stephen Cooke

[Quoted text hidden]

Emily Partridge <e.partridge@claritylawyers.com.au> Thu, Nov 23, 2023 at 8:12 PM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Samantha Miller <samantha@claritylawyers.com.au>, Jacqui Kinloch <jacqui@claritylawyers.com.au>

Hi Stephen,

Thank you for your email.

We confirm that the letter has been sent to Heather. We will you updated as to any response we receive in due course.

Please otherwise find ***attached*** a 'Disclosure Document List' which will provide you with guidance in the process of collating your disclosure documents (where applicable to you – e.g. superannuation statements for your interest in Future Super). We note that the 'Game Plan' document makes reference to your Managed Funds in Praemium Prae' valued at $274,986. Could you please clarify your instructions in relation to this?

Your options for providing the documents (albeit limited) are as follows:

1. By email (ZIP file);
2. Uploading them to FamilyProperty; or
3. Securely via Dropbox.

If you have any questions regarding the disclosure process, please do not hesitate to telephone our office (02) 4023 5553 and our legal assistant, Jacqui Kinloch, can assist you.

[Quoted text hidden]

Disclosure Document List PDF.pdf
144K

Stephen Cooke <stephencooke.c@gmail.com> Sun, Nov 26, 2023 at 10:02 PM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>, Jacqui Kinloch <jacqui@claritylawyers.com.au>

Hi Emily, Samantha,

Attached is what I was able to find. Why the discrepancy I wonder between what appears to be and what is listed in the Game Plan...

Please advise If there are any questions.

Regarding the invoice that is due Nov 30th, I have funds to cover but was wondering if the financing has fallen through?

Kind regards,

Stephen Cooke
[Quoted text hidden]

Praemium Prae and FutureSuper.zip
8518K

Emily Partridge <e.partridge@claritylawyers.com.au> Tue, Nov 28, 2023 at 11:02 PM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Samantha Miller <samantha@claritylawyers.com.au>, Jacqui Kinloch <jacqui@claritylawyers.com.au>

Hi Stephen,

We confirm receipt of your initial financial disclosure documents from this week – thank you for your attention to this. We will be in touch if we require anything further in that regard.

In relation to your most recent invoice, we are happy for this to be paid from the funding that comes through from JustFund in due course.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Wed, Nov 29, 2023 at 12:24 AM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>, Jacqui Kinloch <jacqui@claritylawyers.com.au>

Thank you.

Has Heather moved money back to a trust account yet? Has she sent 25k for legal fees? Have you had a response from the other side?

Kind regards,

Stephen Cooke
[Quoted text hidden]

10 attachments



image001.png
33K



image002.jpg
11K



image002.jpg
11K



image002.jpg
11K



image002.jpg
11K



image002.jpg
11K



image002.jpg
11K



image001.png
33K



image001.png
33K



image001.png
33K

Emily Partridge <e.partridge@claritylawyers.com.au> Wed, Nov 29, 2023 at 12:39 AM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Hi Stephen,

We are yet to receive a response from Heather. Please note that we have given her 7 days to respond to our correspondence (**1 December 2023**). If we have not heard from her by close of business on Friday this week, we will be in touch with you to discuss next steps.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Wed, Nov 29, 2023 at 12:55 AM
To: Emily Partridge <e.partridge@claritylawyers.com.au>
Cc: Samantha Miller <samantha@claritylawyers.com.au>

Okay, thank you. Just confirming again, her email is heather111finn@gmail.com in the event this was not sent to her solicitor.

Kind regards,

Stephen Cooke
[Quoted text hidden]